



Obayashi Corporation - Multiplex

MN-05031

Phase 1 Determination

Acquisition may be put into effect

18 August 2026

1. Determination and statement of reasons

Notified acquisition	Obayashi Corporation (Obayashi)'s proposed acquisition, via its subsidiary, of 100% of the shares in BCI UK Holdings Ltd which, together with its subsidiaries, makes up the Multiplex Group (Multiplex) (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABZE(1) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition may be put into effect.
Parties to the Acquisition	The acquirer, Obayashi, is a Japanese construction contractor that carries out and participates in building construction, infrastructure development and renewable energy projects in Japan and elsewhere, including in Australia. Obayashi is involved in the development of large-scale projects including stadiums, mixed-use developments, and transport infrastructure. In Australia, Obayashi participates in certain large-scale construction projects through an arrangement with Built Pty Limited, an Australian construction company. The target, Multiplex, is a construction company that supplies building construction services across Australia, Canada and the UK. In Australia, Multiplex's services primarily involve the delivery of large-scale construction projects, including high-rise developments, across sectors such as commercial offices, retail, health and social infrastructure.
Overlap between the Parties	Obayashi and Multiplex (together, the Parties) both supply building construction services involving large-scale projects. However, Obayashi has a limited presence in Australia.
Reasons for determination	When making a determination in Phase 1, the Australian Competition and Consumer Commission (ACCC) undertakes a competition assessment and considers whether it is appropriate for an acquisition to be approved or subject to further assessment in Phase 2 in accordance with section 51ABZJ of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). In doing so, the ACCC must have regard to the object of the Act and all relevant matters, including the interests of consumers. For more information about the ACCC's approach to considering notified acquisitions, see the ACCC's merger assessment guidelines and interim merger process guidelines. In conducting its competition assessment, the ACCC has considered the information and documents that were submitted with the notification form, information from third parties and publicly available information. The ACCC has determined that the Acquisition may be put into effect as it considers that the Acquisition is unlikely to have the effect of substantially lessening competition in any market. In reaching its decision, and based on the material before it, the ACCC makes the following findings. • There is limited horizontal overlap between the building construction services offered by the Parties, given Obayashi has

	a small presence in Australia. • Post-Acquisition, the merged entity would continue to face competition from alternative suppliers of building construction services to large-scale projects in Australia.
Applications for review	A notifying party, or other person who has been allowed to do so by the Australian Competition Tribunal, may apply for review if they are dissatisfied with the determination. Pursuant to section 100C of the Act, applications for review of the determination are to be made to the Australian Competition Tribunal before the end of 14 calendar days after this statement of reasons was included on the ACCC's Acquisitions Register. To confirm whether there has been any application for review, please contact the Australian Competition Tribunal.

**Determination made by Commissioner Williams pursuant to a delegation under section 25(1)
of the Act**